

GENERAL TRUST ADMINISTRATION.....5
GRANTOR -TRUSTEE RELATIONSHIP.....4
ORGANIZATIONAL PURPOSE AND INTENT.....4
PURPOSE AND INTENT.....3
NAME AND ESTABLISHMENT DATE.....2

Table of Contents

DECLARATION OF CONTRACT AND INDENTURE

1

NAME OF TRUST

(PRIVATE IRREVOCABLE EXPRESS TRUST UNDER COMMON-LAW)

NAME OF TRUST

TO PERFORM UNDER THE NAME
IT-S TRUSTEE
THIS INDENTURE AUTHORIZES

UNITED STATES OF AMERICA.
UNINCORPORATED REPUBLIC OF THE
STATE REPUBLIC WITHIN THE

WITH THE ORIGINAL SITUS IN THE
UNDER THE RIGHT OF CONTRACT LAW
IS TO BE INTERPRETED AND EXECUTED
THIS DOCUMENT

Of Trust

Declaration And Contract

Declaration of Trust for NAME OF TRUST

.. FILLABLE TEMPLATE

· Replace all placeholders before notarization. Signed originals are authoritative.
· Yellow boxes are editable fields. Click to type in any PDF viewer.

Declaration of Irrevocable Trust

Private Family Trust

TRUST. This Private Contract is made for the purpose of establishing a private contract

NAME OF TRUSTEE, herein known as the First Trustee, under the name of NAME OF

· NAME OF GRANTOR:

between NAME OF GRANTOR here

day,

Declaration of Trust and shall continue for a term of one hundred (100) years from this

· 20XX:

· 20XX:

· XXth:

THIS INDENTURE (-Agreement-) m

· 20XX:

· 20XX:

· Month XX:

Established Month XX, 20XX 00:00

DECLARATION OF IRREVOCABLE TRUST

NAME OF YOUR TRUST

2

AMENDMENTS TO THE TRUST CONTRACT.....14

PRIVACY RIGHTS AND NON-DISCLOSURE.....14

RENEWAL OF THE TRUST.....13

DISTRIBUTION OF INCOME AND ASSETS.....12

TRANSFER OF TRUST CERTIFICATE UNITS.....11

BENEFICIARIES.....11

LIMITED LIABILITY OF TRUSTEES.....11

ANNUAL AND SPECIAL MEETINGS10

RESIGNATION AND REMOVAL OF TRUSTEES OR OFFICERS9

ACCEPTANCE BY TRUSTEES9

COMPENSATION OF TRUSTEES AND OTHERS8

TRUSTEE POWERS.....7

NUMBER AND TENURE OF TRUSTEES.....6

TRUST MANAGEMENT5

any

WHEREAS, The Trustees, in addition to all other powers granted by this Indenture and

STATES OF AMERICA.

REPUBLIC WITHIN THE UNINCORPORATED REPUBLIC OF THE UNITED

3

· YOUR STATE:

jurisdiction of the Common Law). Th

Uniform Trustees Powers Act, and the Constitution of the United States of America, and the

· YOUR STATE:

according to applicable Common La

respects

WHEREAS, The Trust shall be administered, managed, governed and regulated in all

Units available to the Beneficiaries.

assets or any early distribution of the assets thereof. There shall be exactly 100 Trust Certificate have any vested interest, until the termination of this Trust and final distribution of accumulated Beneficiaries, an absolute gift of the Trust Certificate Units, in which the Beneficiaries shall not by the Grantor or by any other person or entity. It is the intention of the Grantor to make to the

irrevocable

WHEREAS, the Trust shall be amendable, as described in the bylaws, and shall be

of the total active number of trustees, collectively as the Board.

composed

WHEREAS, the Trust is authorized to exist and function through its board of trustees,

disbursement of said Trust.

which are to be transferred and held in Trust, for the Beneficiaries, until dissolution and specific property identified in the attached Schedule A, in exchange for one-hundred (100) TCU,

the

WITNESSETH: Whereas the Grantor, irrevocably assigns and conveys to the Trustee

system administered by legal persons acting in a fiduciary capacity.

all assets that become available and to provide for a prudent administration and distribution hereinafter ·Beneficiaries· for the purpose of identifying, accumulating, purchasing and holding private contract express trust to the benefit of the Grantor-s family, heritors, and heirs, America, acting here in as the ·Grantor.· With this Agreement, the parties intend to create a

· YOUR STATE:

YOUR STATE Republic within the u

· NAME OF GRANTOR:

irrevocable trust under the Common

4

NOTARY/WITNESS

· NAME OF TRUSTEE:

First Trustee: NAME OF TRUSTEE

· NAME OF GRANTOR:

Grantor: NAME OF GRANTOR

written above.

IN WITNESS whereof, the parties hereto have executed this agreement on the day and year first

Trust assets.

Trust may also employ a management company to provide for the preservation and growth of the accountants, brokers and investment, tax and other advisors as the Trust deems advisable. The

iv. To employ and to pay from the Trust Estate, reasonable compensation to such attorneys, Attorneys, Advisors, Agents and Managers

compensation, any and all claims affecting the Trust Estate or Trust Organization.

Estate, and to submit to binding arbitration, to settle, release or adjust, with or without

iii. To initiate or defend, at the discretion of the Trustee, any litigation affecting the Trust Litigation and Adjustment of Claims

pledge or deed of trust.

purchase at any sale thereunder, any such real or personal property subject to any mortgage,

ii. To enforce any and all mortgages, pledges and deeds of Trust held by the Trust and to Mortgages and Property

interest which may be received or initiated by the Trust.

continue to operate, at the Trustee's discretion, and corporation, partnership or other business and personal property of the Trust as the Trustee deems advisable and to sell, liquidate or

To invest and reinvest, lease, rent, mortgage, insure, repair, improve, or sell any of the real

i.

Management of the Trust

Trust, to be executed from time to time at the discretion of the Trustee:

subsequent minutes and bylaw, shall be given the following additional powers with respect to the

GENERAL TRUST ADMINISTRATION

immediately resign and a new Trustee assigned.

SECTION 4: If it is shown that a Grantor-Trustee relationship exists, that Trustee shall
5

Grantor-Trust provisions of the Internal Revenue Code.

consistent with the purpose of keeping the income from being taxed to the Grantor under the

SECTION 3: The Grantor shall retain no power to control the assets placed in the Trust,

the Trust to be taxed to the First Trustee or to the Grantor.

income in himself, or any other power, the possession or use of which would cause the income of
fiduciary capacity, nor a power exercisable solely by that Trustee to vest the Trust assets or

SECTION 2: No member of the Board shall possess or use a power of administration in a non

No Trustee of this Trust shall be deemed a Grantor of this Trust.

taxed to the Grantor or Trustee under the Grantor-Trust provisions of the Internal Revenue Code.

SECTION 1: It is against the purpose and intent of this Trust for the income of the Trust to be

ARTICLE TWO

GRANTOR -TRUSTEE RELATIONSHIP

(IRC).

partnership, or a limited liability company but a trust as defined by the Internal Revenue Code
a living trust, or a partnership or a corporation, or a company, or a joint venture, or a limited
otherwise known as Declaration of Irrevocable Trust, or a Pure Trust, is hereby created, and not

SECTION 3: It is expressly declared that an unincorporated Private Trust by Contract,

discretion of the Trustees, make any purchase it deems prudent for its Organizational Purpose.
property eventually being distributed to the Trust Certificate Unit Holders. The Trust may, at the
sale, quit claim, deed or other transfer, with the consent of the Board and with the intent of the

SECTION 2: Any person may add property to this Trust Estate by gift, will, exchange, bill of

just simply arrangement to protect and conserve the property for the beneficiaries.

health, growth, protection, education, expansion, welfare, preservation and continuation and not
so the Trust Certificate Unit Holders may possess the things of Life sufficient to provide for

SECTION 1: The Purpose and intent of this Trust is to maintain and improve this Trust Estate

ARTICLE ONE

ORGANIZATIONAL PURPOSE AND INTENT

BYLAWS

NAME OF TRUST

the position of General Trust Manager (GTM).

management and control of the Trust to appoint one of its Trustees, or a qualified non-Trustee, to

SECTION 1: The Trustee shall, at its discretion, have power in connection with the

6

ARTICLE FOUR

TRUST MANAGEMENT

Managers and like persons, incurred while on Trust business.

SECTION 9: The Board is further authorized to pay expenses of Trustees, Officers, Executives,

operated by the Trust.

Trustee uses the property to conduct the business of the Trust, or to administer any business

SECTION 8: The Board shall pay for any rent of a property used by the First Trustee if this

and Estate out of Trust operating funds.

bills and obligations arising out of the maintenance, operation and administration of the Trust

SECTION 7: The Board shall pay all mortgages, property taxes, assessments, charges, debts,

property for any purposes necessary to further the intent of the Trust.

SECTION 6: The Board may also designate any other entity to hold funds or title to Trust

borrowing, either secured or unsecured.

Board shall, as it deems proper and necessary, provide for operating funds through any type of the Trust. The Board may sell any Trust assets for the purpose of adding to these funds. The

SECTION 5: Funds accruing in the Treasury of the Trust shall constitute the operating funds of

thereof by substituting other property of an equivalent value.

SECTION 4: The Grantor shall not have the power to reacquire Trust Property, or any part

always at fair market value and for full consideration.

SECTION 3: The Board of Trustees may purchase from or sell to the Grantor, any property, but

in the particular transaction.

made by the Board, other than such legal interest as would any outside person have to the Trust

SECTION 2: Under no circumstances shall the Grantor have any interest in any investment

Trustee, or in the private capacity of any other individual, or entity.

· NAME OF TRUST:

executed in the official business of N

commercial instrument or agreement, then it shall be understood that each transaction was

endorses above the copyright or copy-written name, for the authorization or the liability on a

SECTION 1: When the Trust is the holder of a copyright or copy-written name, and a Trustee

ARTICLE THREE

c.

needed to manage the affairs of the Trust.

To appoint Secondary Trustees and shall increase or decrease the number of Trustees as

b.

recorded in the minutes of the Trust.

entered as a first lien against the Trust Estate which must be repaid, as long as the transaction is

To make a loan with interest to the Trust for any purpose and such transaction shall be

a.

7

authority and power as follows:

do in any state or country. Specifically, but not by way of limitation, they shall have all rights,

common law powers over the trust estate herein, and may do anything any citizen may lawfully

SECTION 1: Where is not otherwise prohibited by law the Trustee(s) shall have general

ARTICLE SIX

TRUSTEE POWERS

the consent of any of the TCU Holders thereof, and yet, to the TCU Holders benefit just the same.

management and control of this Trust Organization's properties and lawful business affairs, without

appointed to fill any vacancies, shall hold office and have and exercise collectively the exclusive

SECTION 3: The Trustees hereafter mentioned by name, or any and all other successor Trustees

duration on the Board of Trustees regardless of any vacancy by any senior Trustee.

Third Trustee, and so on, and each Trustee shall maintain such appointed office for their entire

maintained in the order upon which they are duly appointed, such as First Trustee, Second Trustee,

SECTION 2: Upon a Trustee's appointment to an office of Trustee, tenure shall be assigned and

(1) in number and may be increased for practical reasons beneficial to this Trust Organization.

SECTION 1: The number of Trustees comprising the Board of Trustees shall not be less than one

ARTICLE FIVE

NUMBER AND TENURE OF TRUSTEES

the office of GTM is not assigned.

SECTION 6: The Trustee shall hold all management duties and responsibilities in the event that

its assets and earnings, and day-to-day operations.

SECTION 5: The GTM shall have absolute and sole discretionary power over this organization,

to, the routine day-to-day operations, subject to the approval of the Board of Trustees.

SECTION 4: The GTM shall have full authority to manage the Trust including, but not limited

SECTION 3: The GTM shall be compensated by his or her services, as recorded in any Minute.

Trust.

SECTION 2: The GTM shall be deemed an Independent Contractor, and not an employee of the

n.

trust.

further authorized to honor any buy-sell agreements extant as to any property or interest held in insurance proceeds or any other methods deemed acceptable to the Trustees. The Trustees are To accept additions to the trust estate by deed. will, assignment, exchange, gift, grant,

m.

to the Trustees' best judgment.

To make distributions in cash or in kind and to assign values to such property according

l.

demonstrated.

company, a Trustee or nominee so long as company ownership of such property can be clearly

To register company property in the name of the company, a fictitious trade name of the

k.

or advantageous to the trust estate.

To allocate capital gains and/or dividends to trust principal as may be deemed appropriate

j.

without security. All borrowed funds shall immediately become a part of the trust estate.

To borrow on or encumber the trust estate without restriction, and to make loans with or

i.

personal or mixed. in such a manner as deemed appropriate.

To sell, grant, convey, mortgage, option, rent, lease or pledge all trust estate assets~. real.

h.

conditions as the Trustees may deem proper.

To sell at public or private sale for cash, credit, or both, and upon such terms and

g.

purchase or sell, in trust, any financial property for the use and benefit of the Beneficiaries.

To open, maintain, or close bank accounts as necessary to receive and hold and/or to

f.

mutual funds and trust funds.

precious metals, corporate obligations of every kind, preferred and common stock, commodities,

Specifically included, but not by way of limitation, are real estate collectables. gems, art works,

customarily used for trust funds, and without restrictions as to the duration of this Trust.

account. without being restricted to investments which are ordinarily permitted by law or

property or venture which men of prudence, discretion and intelligence consider for their own

To manage, invest and reinvest the trust estate, or any part thereof, in any kind of

e.

conclusive on all parties.

and its trust estate, and the Trustees' good faith decision in that regard shall be binding and

To compromise or abandon any claims arising out of. in favor of. or against the company

d.

Successor-Trustee.

qualified Successor-Trustee, who shall take office at the time of the removal of the removed

any Secondary Trustee, upon written notice, so long as said First Secretary shall, appoint a

of the interests of the Beneficiaries hereof. The First Secretary shall have the power to remove

To appoint a First Secretary, whose sole duties and powers shall be to serve as a Protector

COMPENSATION OF TRUSTEES AND OTHERS

holders as provided herein.

company affairs, terminate this Trust and make distributions of the trust estate to certificate

The Trustees, by majority vote, may at any time and at their sole discretion wind up

v.

administered in the best interest of certificate holders and in the manner intended.

protect the integrity of the Trust and to insure the Trust will continue to function and be

appropriate to

declaration, and take such other consequential actions as; they deem necessary or

The Trustees, by unanimous vote, may make amendments to this contract and

u.

without cause if they deem such change will protect or benefit the trust estate.

The Trustees by a majority vote, may change the domicile of the company with or

t.

such delegation at any time by written notice delivered to such persons.

persons as may be deemed expedient for the management of company affairs, and may revoke

The Trustee may expressly delegate one or more of their powers to any other person or

s.

effectively minimize such taxes.

complete discretion, power and authority to make any decisions or elections that would

To pay all taxes out of the trust estate where taxes are required by law, and to have

r.

profits and losses, if any therefrom, shall be chargeable respectively to the trust estate.

To hold, manage and operate any company property, or business or enterprise. The

q.

trust provisions herein in respect of a Trustee authority without making further inquiry.

any loss. Further, any securities firm or commodities trader may rely on this document and the

such condition that ownership will pass. The Trustees shall incur no liability to the company for

hold securities in their own names, the name of a nominee, in street name, or unregistered in

or trade in options, commodities, and to make short sales. The Trustees shall be empowered to

To open margin accounts with securities firms and commodities traders and to buy, write

p.

involving the common interest of security holders.

securities holders and to participate in voting trusts, reorganizations and other transactions

To give proxies, to deposit securities with and transfer title to committees representing

o.

8

expenses and receipts between principal and income as the Trustee shall deem proper.

accountant's fees, Trustee fees, brokerage fees, consulting fees and the like, and to allocate all the

ordinary and necessary expenses of administration, including, but not limited to, legal fees,

expedient. To hire and remunerate employees, agents or contractions. To incur and pay the

To elect and remunerate officers from the Board or elsewhere as deemed appropriate or

cause;

By mandate of court when guilty of fraud, theft, malfeasance in office, or other legal

b.

Removal is done by the unanimous vote of the other Trustees.

a.

SECTION 2: Secondary Trustee may be removed from office for gross neglect of duty.

Trust by appropriately providing 30 days written notice.

SECTION 1: Any Trustee, Trust Manager or Trust Officer may resign from their duties with the

ARTICLE NINE

RESIGNATION AND REMOVAL OF TRUSTEES OR OFFICERS

existing certificate holders as their contingent rights; may appear.

The agreement to, upon final liquidation of the trust estate, to distribute the assets to the

d.

the Trust Minutes.

property of the trust estate in accordance with decisions of the Board of Trustees as set forth in

The agreement to exercise their best judgment and discretion to conserve and improve the

c.

with the terms and conditions set forth in this contract and its inherent trust provisions.

The acceptance and agreement to conduct the Trust affairs in good faith. in conformity

b.

acknowledge the delivery of all property specified on Schedule "A".

The acceptance of the initial gift or conveyance of property on behalf of the Trust and

a.

9

agree to the following:

by accepting the appointment as Trustee of this Trust causes all present and future Trustees to

SECTION 1: The first Trustee, for himself and all subsequent Trustees, and successor Trustees,

ARTICLE EIGHT

ACCEPTANCE BY TRUSTEES

entry thereafter.

services as may be determined by the Board of Trustees' resolution and the appropriate Trust Minute

SECTION 2: The Board of Trustees may pay themselves such reasonable compensation for their

Organization's officers, agents, contractors, or clients, at their discretion.

SECTION 1: The Board of Trustees shall set and pay compensation of all of this Trust

ARTICLE SEVEN

default of any Trustee, or any other person in connection with the administration and

SECTION 3: No Trustee, created by this Indenture, shall ever be held liable for any action or

services as a Trustee to the Trust.

shall be reimbursed by the Trust for any losses they should suffer for any reason while providing

SECTION 2: This liability shall not jeopardize their personal holdings or accounts and they

liability as shall attach to the Trust assets.

SECTION 1: The Trustee(s) shall, in their capacity as the Board, assume or incur only such

ARTICLE ELEVEN

LIMITED LIABILITY OF TRUSTEES

present.

SECTION 5: Any actions taken on behalf of the Trust shall require a unanimous vote of those

as any such voting is recorded in the minutes.

other electronic means, including email and text messaging, as well as physical presence, as long

SECTION 4: Participation and voting at any meeting may be done by telephone, internet, or

10

expenses connected with a meeting.

SECTION 3: Meetings may be held anywhere in the world. The Trust would pay for any and all

any meeting.

SECTION 2: A majority of all the Board shall constitute a quorum for conducting business at

members of Trust.

by one or more Trustees upon three (3) days notice. This is in the event that there are other board

SECTION 1: The Trustee shall provide for an annual meeting. Special meetings may be called

ARTICLE TEN

ANNUAL AND SPECIAL MEETINGS

terminate or impact the day-to-day operations of the Trust.

SECTION 5: Any new Trustee shall abide by the original Trust Contract, and shall not dissolve,

power to appoint other Trustees.

apply to a court of competent jurisdiction to appoint a new First Trustee, who shall have the

SECTION 4: If there is no Trustee left to vote for a Successor-Trustee, the Beneficiaries may

number of Trustees by one.

Board of Trustees shall, by unanimous vote, either appoint a Successor Trustee, or reduce the

SECTION 3: In the event of death, resignation, or removal from office of any Trustee, the

SECTION 4: The Protector can advise the Board of Trustees, should the Trustees so wish.

member of the Trustees.

SECTION 3: The Protector cannot be subservient or subordinate to any Trustee or family Trust Group.

could be harmful or destructive to the Trust Estate; Actions which might bring discredit on the includes: The overall legal status and holding of Trust property; Actions by its fiduciaries which protects the present and contingent distribution rights of the Trust Certificate Unit Holders. This

SECTION 2: The Protector ensures mediation and arbitration. The Protector secures and

choosing succeeding Protectors. The details will be in the minutes.

Trust Estate. The Board of Trustees reserves the right to set up instructions and standards for right to choose a succession of at least two Protectors to be on file within the minutes of this

SECTION 1: The Board of Trustees appoints the first Protector. The Board of Trustees has the

ARTICLE TWELVE

PROTECTOR

11

by the Trustees for any option or advice presented by a consultant or any executive Trustee.

SECTION 9: No liability accrues for losses resulting to the Trust Estate from any action taken

Indenture, absent willful default or gross negligence.

agent properly selected by the Trustees to carry out specific duties and needs contained in this

SECTION 8: No liability accrues for any or default in the transaction of Trust business by any

the liability results from that Trustee's own bad faith or gross negligence.

SECTION 7: No liability accrues to any Trustee for any act or default by any Co-trustee, unless

any person receiving such payment or distribution.

made in good faith and without notice or knowledge of any change in the conditions or status of

SECTION 6: No liability accrues for any payment or distribution needed in this Indenture that is

investments.

caused by any investments made, provided the Trustees act in good faith in making such

SECTION 5: No liability accrues for any depreciation to the value of assets or other losses

conduct by the Trustee leaving a negative impact on the Trust Estate.

financial structure, behavior akin to one who is drunk, or irresponsible, unlawful, or immoral

such loss or expense as is occasioned by gross negligence such as deliberately acting to undo the

SECTION 4: No liability accrues for any loss or expense suffered by the Trust Estate, except

commission of a willful act of breach of trust.

management of this Trust unless caused by the individual's own gross negligence or by

a legitimate request for a transfer shall not be unreasonably withheld. Approval may be withheld noted by a written Minute. A new Certificate will be issued to the new TCU Holder. Approval of person(s), only if the transfer is approved by a unanimous vote by the Board of Trustees, and strictly limited. A TCU Holder may transfer, sell, exchange or give those units to any other

SECTION 1: In accordance with the stated purposes of this Trust, the transfer of TCUs is

ARTICLE FOURTEEN

TRANSFER OF TRUST CERTIFICATE UNITS

Units except under the procedures as set forth in the Bylaws.

SECTION 6: No TCU holder shall have any power to sell, assign, or transfer any of his or her

SECTION 5: No Beneficiary has any management power over the Trust.

Beneficiary.

Neither the income nor principal of the Trust shall be liable for any personal debts of any interest in any Trust income until the actual termination of this Trust, or its early distribution.

SECTION 4: No Beneficiary may hold title to any of the Trust assets, and shall have no vested

upon the death of that holder.

Assets which remain at the termination of this Trust. All rights of any TCU holder terminate

12

of TCUs issued (100) shall also be the percentage such Beneficiary shall be entitled to any Trust

SECTION 3: The number of TCUs held by each Beneficiary as a percentage of the total number

transfer is first approved by the Board of Trustees.

SECTION 2: No TCU holder shall transfer any rights in any TCUs until and unless such

remove any deceased Beneficiaries.

Grantor-s wishes. The Grantor or the First Trustee may add any additional Beneficiaries or no less. These UBIs shall be transferred by the Board of Trustees in accordance with the Beneficial Interest). There shall always be 100 Trust Beneficial Units in issuance; No more and

SECTION 1: The Beneficiaries of this Trust shall be the holders of the UBIs (Units Of

ARTICLE THIRTEEN

BENEFICIARIES

accepting the position with this Trust.

SECTION 6: The Protector signs a separate agreement that becomes part of this indenture when

between the Board and the Protector.

SECTION 5: The Protector will receive reasonable compensation for this position as agreed

SECTION 4: Income shall be distributed only in the same ratio as the number of TCUs held by
distributable income.

SECTION 3: The Board of Trustees shall make an annual determination of the existence of
principal and allocated to the Trust Assets.

SECTION 2: If, after such income distribution, any income remains, it shall be deemed to be
prevent such income from being taxable to the Trust.

distributed to the Holders, the Board shall distribute a sufficient amount of such income so as to
Holders of Trust Certificate Units, and/or income taxable to the Trust if this income is not

SECTION 1: If it is determined by the Board of Trustees that there is income distributable to the

ARTICLE FIFTEEN

DISTRIBUTION OF INCOME AND ASSETS

13

schedules within the records of the Trust Estate documents.

· Name of Family:

· Name of Family:

distant than the second cousin of Na

· Name of Ancestor:

· Name of Ancestor:

partner. TCUs can only pass to a dir

SECTION 6: Inheritance of TCUs. TCUs belong solely to the holder and not to the marriage

transferred on a prorated basis among the remaining TCU Holders.

SECTION 5: If no such transfer was approved and recorded in the Minutes, the TCUs will be

Trust and issue new TCUs.

Upon transfer of the TCUs, the Board of Trustees shall record the transfer in the records of the
death. Such requests shall be considered and such approval will not be unreasonably withheld.

Holder that will receive the original Holder-s TCUs and their associated rights upon his or her

SECTION 4: Any Holder may request that the Board of Trustees accept a named successor

assets.

SECTION 3: The death of a TCU Holder terminates his or her interest in any rights to the Trust

SECTION 2: Any determination of the Board regarding the approval of a transfer shall be final.

of the assets.

as collateral for a loan or in any anticipation of an early termination of the Trust and distribution

if, in the opinion of the Board of Trustees, the transfer is connected to an attempt to use the TCU

decided. That is, if a Holder is in need, the Board of Trustees is to take care of that need, using
SECTION 1: The Holders will be considered first, before any charitable contributions are

ARTICLE SIXTEEN

CHARITABLE CONTRIBUTIONS

- d. Partial payment directly to the Holder;
- c. By Trustees paying directly for the support of the Holder;
- b. To any person or organization providing support for Holder;
the person or Estate if the Holder;
- a. To the natural Guardian or the legally appointed Guardian, Conservator, or other fiduciary of
more, or any combination of the following ways:
or her directly, the Trustee may make any payments in the Trustees' discretion, in any one or
a person whom the Trustee decide to be unable to wisely or properly handle funds if paid to him

SECTION 12: If a Holder entitled to receive income or principal is a minor, an incompetent or
on the job training, college, university.
the list of optional educational requirements for beneficiaries) i.e Trade School, Apprenticeship,
14

SECTION 11: Specific educational opportunities are encouraged in the following areas: Fill in
each TCU holder.

SECTION 10: The Board, may at its discretion, make an annual gift not to exceed \$10,000 to

SECTION 9: The beneficiaries need to allocate the distribution funds to

because of known matters at the time this distribution is delayed.
eligible for his or her full distribution, unless for serious considerations of the Board of Trustees

SECTION 8: After the Beneficiary reaches the age of Thirty (30), the Beneficiary becomes

Trust assets that were to be distributed to that Holder.
income to cover the distribution, the balance of the amount advances shall be deducted from any
distribution and deducted from any future distribution of income. If there is not enough future

SECTION 7: Any distributed income shall be charged to the account of the Holder receiving the

Indenture and Bylaws, and with respect to the rights of the other TCU Holders.
amount which the Board determines is consistent with the purposes and intent of the Trust

SECTION 6: The Board, in its discretion, may, at any time, distribute to such Holder any

any advance, shall be final.

Holder. Any decision of the Board to distribute or not distribute, or as to the dollar amount of
based upon emergency circumstances relating to the health, education, or maintenance of any
future distributions of both income and principal. The Board may consider such applications

SECTION 5: Any TCU Holder may apply to the Board of Trustees for an advance towards

each holder.

Trustees, officers and others involved in this Trust Estate are bound by the Path of Privacy

SECTION 3: It is stressed and reaffirmed here that in all matters about this Trust Estate the

sections of the original Trust formation agreement.

view any documents of this Trust except for the ·Declaration of Trust· and the ·Trust Indenture·

SECTION 2: To insure this right to privacy, no non-officer of the Trust shall be permitted to

any and all TCU Holders.

Trust Certificate Unit Holders. The Grantor has stated that no one will disclose the identities of

SECTION 1: No officer of this Trust shall disclose to anyone any information pertaining to the

ARTICLE EIGHTEEN

PRIVACY RIGHTS AND NON-DISCLOSURE

Minutes of the Trust.

to the remaining Beneficiaries in equal proportion. Such distribution shall be noted in the TCUs held by the objecting Beneficiary shall be turned into the Trust, and shall be redistributed Trust terminated, and continued the Trust with the remaining Trust assets and Beneficiaries. The Beneficiary such portion of the Trust assets as he would have been entitled, in the event that the

SECTION 2: If any Beneficiary objects to a renewal, the Board shall distribute to that

15

Any future renewals shall be handled in the same way as the first renewal.

between sixty (60) days and one hundred twenty (120) days before the original termination date.

the Beneficiaries and there are no objections. The decision to renew the Trust shall be made

term, not to exceed the original term, if it is determined by the Board to be in the best interest of

SECTION 1: The Board of Trustees shall have the power to renew the Trust for any reasonable

ARTICLE SEVENTEEN

RENEWAL OF THE TRUST

III. Vocational training will be available per their interest, or as recommended by counselors. needed.

II. Administrative personnel, Psychological, alternative healing methods and professional care as

I. Shelter, food, clothing

Ministry Trust for the benefit

greater than \$100,000.00 a year, the Board of Trustees, at their discretion, is directed to the

SECTION 3: When this Trust Estate achieves over \$100,000.00 in assets, or cash flow of

or more qualified charitable organizations.

encouraged. To that end, the Co-trustee(s) of this Trust Estate is authorized to contribute to one

SECTION 2: It is the intent of the Grantor that charities and the spirit of charitableness be

its discretion, before the support of charitable organizations.

COPIES AS ORIGINALS

effect.

SECTION 2: The Trustees must vote unanimously for any such amendments to pass and take

in violation of the fiduciary obligations to the Trust Certificate Unit Holders.

any such amendment may not be inconsistent with the original Trust purposes and intent, and not comply with any law, rule, regulation or order of any government body, provided, however that Indentures and Bylaws to better carry out the purposes of the Trust, or in order to conform to or

SECTION 1: The Board of Trustees shall have the power to amend or modify the Trust

ARTICLE NINETEEN

AMENDMENTS TO THE TRUST CONTRACT

given any significant information about the internal workings of the Trust.

IV. An employment agreement or an independent contract agreement signed before the person is

III. The Trust Oath of Privacy is agreed to and signed by the prospective person.

II. An offer is made to the prospective person.

I. Discussion with the Board of Trustees recorded in the Trust minutes before an offer is made.

an employment agreement, or an independent contract. The basic procedure to follow is:

join the Trust Estate, the Board of Trustees must approve of the person before he or she is given

SECTION 7: When people, involved in Trust documents or sensitive materials, are invited to

16

of America and every other applicable jurisdiction.

the United States of America, and the common law privacy rights available in the United States

Privacy Act of 1974, 5 U.S.C. 552(a), the Fourth and Fifth Amendments to the Constitution for

SECTION 6: This indenture and all Trust Estate business is kept private, protected by the

meeting of the Board of Trustees as set forth above.

except on formal written approval of the Board of Trustees given at the regular or special

the internal affairs, or the operations of this Trust Estate will be disclosed to any third-party,

SECTION 5: No document, record, bank account, or any other written information dealing with

Trustees.

submitted to the Board of Trustees for processing at the next scheduled meeting of the Board of

contractors of the Trust Estate, either individually or collectively, in writing by the inquirer and

SECTION 4: All inquiries may be directed to any of the Trustees or other officers, employees or

Trust Estate, or any fictitious name, also known as a D.B.A. of this Trust Estate.

unless such person needs to know such information for the responsibilities held within this

Trust Estate; and not even within the Trust Estate to any other Trustee, Officer or Staff Member,

Oath of Privacy is considered private and secret must not be revealed to any person outside this

which they signed. The Oath of Privacy is in full force, and the information mentioned in the

Certificate Units of the Trust to the Beneficiaries in accordance with the Grantors direction. governing instruments of the Trust, and agrees to transfer all beneficial interest and Trust Indenture, the Bylaws, and the Resolutions of the Board of Trustees, which shall serve as the properties given by the Grantor, and accepts the Bylaws, conditions, terms and provisions of this

· Name of Trustee:

I, Name of Trustee, by signing this tr

· Name of Grantor:

Grantor: Name of Grantor

· 20XX:

· 20XX:

day of <MONTH> 20XX.

have hereunto set their hands and seals in token of the acceptance of, assent to and covenant to In witness whereof, the Grantor hereof and the First Trustee hereof, in the name of the Board,

ARTICLE TWENTY TWO

ACCEPTANCE OF TRUST BYLAWS

17

the remaining provisions.

Bylaws, or Minutes of this Trust is held to be unenforceable or invalid, it shall not affect any of

SECTION 1: If any sentence, paragraph, clause, section or provision of this Trust Indenture,

ARTICLE TWENTY ONE

SEVERABILITY CLAUSE

original document in every respect.

correct copy, are relied upon as an original document and have the full force and effect of the fact the copy is an exact copy of the original, or copies certified by the Executive Secretary as a

SECTION 1: A copy of this document bearing the seal or signature of a Trustee attesting to the

ARTICLE TWENTY

· Name of Trust:

On this day, the Grantor of the <Name of Trust>

SCHEDULE A

18

Witness/Notary:

to me on the basis of satisfactory evidence to be the man who came before me.
, who proved

· 20xx:

· 20xx:

20xx, by

day of

this

)

<COUNTY OR CITY>

)

)

· YOUR STATE:

<YOUR STATE>

JURAT/ACKNOWLEDGMENT

· Name of Trustee:

First Trustee: Name of Trustee

· 20XX:
20XX, by

day of
 this
)
<COUNTY OR CITY>
)
)

· YOUR STATE:
<YOUR STATE>

JURAT/ACKNOWLEDGMENT

First Trustee: <Trustee Name>

Grantor: <Grantor Name>

of the execution of the Trust Indenture.
certain properties which were agreed upon between the Grantor and the First trustee at the time
This list of property is complete and comprehensive and is the written description of those

Trust Bylaws.
or income of the Trust Estate, nor any power to change in any manner this Trust Indenture or
Indenture in any manner; nor shall it reserve or keep any ownership or control over the principal
As part of the consideration provided, the Grantor agrees that it shall not change this Trust

· One Dollar Bill:
1. One Dollar Bill (Anything of value,

indeterminate value to all parties.

hereinafter referred to as Trust Certificate Units, that shall be of an equivalent, and yet,
The following property is to be exchanged for one-hundred (100) units of beneficial interest,

by the First Trustee and on behalf of the Board.

Bylaws, hereby gives to the Board of Trustees(s), the following described property, and accepted

Grantor:

Respectfully,

I would appreciate your immediate attention to this request

· Mary-anne of the Family Doe:

· 50 TCU:

50 TCU to Mary-anne of the Family

· John-Alex of the Family Doe:

· 50 TCU:

50 TCU to John-Alex of the Family

Trustees to assign and transfer (100) Trust Certificate Units to the following Beneficiaries

In accordance with the Agreement, of NAME OF YOUR TRUST I am hereby directing the

Grantor's Request to Issue Trust Certificate Units to Beneficiaries.

RE:

· Orlando, FL:

Orlando, FL [12345]

· PO Box 12345:

PO Box 12345

Name of Trust

Board of Trustees

To:

19

Witness/Notary:

to me on the basis of satisfactory evidence to be the man who came before me.

, who proved

· 20XX:

Name all the Property in the Trust

SCHEDULE B

Witness/Notary:

to me on the basis of satisfactory evidence to be the man who came before me.
, who proved

· 20xx:

· 20xx:

20xx, by

day of

this

)

<COUNTY OR CITY>

)

)

· YOUR STATE:

<YOUR STATE>

JURAT/ACKNOWLEDGMENT

Name of Trust (Beneficiary) Established on Month xxth, 2023

changed.

disinherit or change the bequest to that beneficiary unless the bequest in the trust is information changes and is not updated in the schedule, it is not the Grantors intention to starting point for the Trustees to contact these individuals. Even if a beneficiary's contact Grantors have assembled the list of beneficiaries' contact information in order to provide a estate. Instead of inserting that beneficiary's contact information inside of the trust, the anything from a specific bequest of personal property to a portion of the remainder of the Throughout the trust, there are references to certain beneficiaries who will receive

Beneficiary Contact Information

SCHEDULE C

1.

CERTIFICATE OF TRUST

23

BENEFICIARY

PERSONAL PROPERTY ITEM

item shall be added back to trust estate.

trust. If any listed beneficiary below predeceases me, then the bequest shall lapse, and the quickly as possible during the trust administration process upon the termination of the that the following property be distributed to the following individuals listed below as direct the Trustees as to how to dispose of certain items of personal property. It is desired

· Name of Trust:

As provided in Name of Trust, I have

· Orlando, FL:

Orlando, FL [12345]

· PO Box 12345:

PO Box 12345

Name of Trust

To: Board of Trustees

Memorandum of Personal Property

SCHEDULE D

22

act independently to bind the trust.

Actions by Trustees. While the above named Trustees are serving, either may

11.

be as valid as an original copy for funding the trust or for any other reason.

Validity of Copies of The Certification. A copy of the Certificate of Trust shall

10.

harmless for any resulting loss or liability from such reliance.

person or organization that relies on the Certificate of Trust, and they shall be held

Waiver of Claim. The Grantors and Trustees waive any action against any

9.

attached as Schedule A to the Certificate of Trust.

Trustee Powers. The provisions of the trust that contain the Trustees powers are

8.

any of these declarations incorrect.

Certificate, and it has not been modified, revoked, or amended in any way so as to make

Declarations Regarding Trust. The trust is in effect as of the date of the

7.

.

Taxpayer Identification Number. The taxpayer identification number for the trust is

6.

trust during their lifetimes.

Trust Is Irrevocable. The Grantor does not have the power to revoke or amend the

5.

· Address of Trust:

Address. The current address of the

· Name of Trustee:

Trustees. The currently acting Trustee

· Name of Grantor:

Grantors. The Grantor of the trust is

provisions.

trust or for any other purpose that requires an identification of the trust and the relevant trust

is the document that the Certificate of Trust summarizes for purposes of funding assets into the

Name of Trust. Name of Trust was created by the Grantor on Month xxth, 2023, and

To appoint Secondary Trustees and shall increase or decrease the number of Trustees as

b.

recorded in the minutes of the Trust.

entered as a first lien against the Trust Estate which must be repaid, as long as the transaction is

To make a loan with interest to the Trust for any purpose and such transaction shall be

a.

as follows:

country. Specifically, but not by way of limitation, they shall have all rights, authority and power

over the trust estate herein, and may do anything any citizen may lawfully do in any state or

Where is not otherwise prohibited by law the Trustee(s) shall have general common law powers

TRUSTEE POWERS

SCHEDULE A

CERTIFICATE OF TRUST

Witness/Notary:

24

to me on the basis of satisfactory evidence to be the man who came before me

, who proved

day of

this

)

COUNTY

)

)

STATE OF

JURAT/ACKNOWLEDGMENT

Trustee:

Grantor:

insurance proceeds or any other methods deemed acceptable to the Trustees. The Trustees are
To accept additions to the trust estate by deed, will, assignment, exchange, gift, grant,
m.

25

to the Trustees' best judgment.

To make distributions in cash or in kind and to assign values to such property according

l.

demonstrated.

company, a Trustee or nominee so long as company ownership of such property can be clearly

To register company property in the name of the company, a fictitious trade name of the

k.

or advantageous to the trust estate.

To allocate capital gains and/or dividends to trust principal as may be deemed appropriate

j.

without security. All borrowed funds shall immediately become a part of the trust estate.

To borrow on or encumber the trust estate without restriction, and to make loans with or

i.

personal or mixed, in such a manner as deemed appropriate.

To sell, grant, convey, mortgage, option, rent, lease or pledge all trust estate assets~. real.

h.

conditions as the Trustees may deem proper.

To sell at public or private sale for cash, credit, or both, and upon such terms and

g.

purchase or sell, in trust, any financial property for the use and benefit of the Beneficiaries.

To open, maintain, or close bank accounts as necessary to receive and hold and/or to

f.

mutual funds and trust funds.

precious metals, corporate obligations of every kind, preferred and common stock, commodities,

Specifically included, but not by way of limitation, are real estate collectables, gems, art works,

customarily used for trust funds, and without restrictions as to the duration of this Trust.

account, without being restricted to investments which are ordinarily permitted by law or

property or venture which men of prudence, discretion and intelligence consider for their own

To manage, invest and reinvest the trust estate, or any part thereof, in any kind of

e.

conclusive on all parties.

and its trust estate, and the Trustees' good faith decision in that regard shall be binding and

To compromise or abandon any claims arising out of, in favor of, or against the company

d.

Successor-Trustee.

qualified Successor-Trustee, who shall take office at the time of the removal of the removed

any Secondary Trustee, upon written notice, so long as said First Secretary shall, appoint a

of the interests of the Beneficiaries hereof. The First Secretary shall have the power to remove

To appoint a First Secretary, whose sole duties and powers shall be to serve as a Protector

c.

needed to manage the affairs of the Trust.

holders as provided herein.

company affairs, terminate this Trust and make distributions of the trust estate to certificate

The Trustees, by majority vote, may at any time and at their sole discretion wind up

v.

administered in the best interest of certificate holders and in the manner intended.

protect the integrity of the Trust and to insure the Trust will continue to function and be

appropriate to

declaration, and take such other consequential actions as; they deem necessary or

The Trustees, by unanimous vote, may make amendments to this contract and

u.

without cause if they deem such change will protect or benefit the trust estate.

The Trustees by a majority vote, may change the domicile of the company with or

t.

such delegation at any time by written notice delivered to such persons.

persons as may be deemed expedient for the management of company affairs, and may revoke

The Trustee may expressly delegate one or more of their powers to any other person or

s.

effectively minimize such taxes.

complete discretion, power and authority to make any decisions or elections that would

To pay all taxes out of the trust estate where taxes are required by law, and to have

r.

profits and losses, if any therefrom, shall be chargeable respectively to the trust estate.

To hold, manage and operate any company property, or business or enterprise. The

q.

trust provisions herein in respect of a Trustee authority without making further inquiry.

any loss. Further, any securities firm or commodities trader may rely on this document and the

such condition that ownership will pass. The Trustees shall incur no liability to the company for

hold securities in their own names, the name of a nominee, in street name, or unregistered in

or trade in options, commodities, and to make short sales. The Trustees shall be empowered to

To open margin accounts with securities firms and commodities traders and to buy, write

p.

involving the common interest of security holders.

securities holders and to participate in voting trusts, reorganizations and other transactions

To give proxies, to deposit securities with and transfer title to committees representing

o.

expenses and receipts between principal and income as the Trustee shall deem proper.

accountant's fees, Trustee fees, brokerage fees, consulting fees and the like, and to allocate all the

ordinary and necessary expenses of administration, including, but not limited to, legal fees,

expedient. To hire and remunerate employees, agents or contractors. To incur and pay the

To elect and remunerate officers from the Board or elsewhere as deemed appropriate or

n.

trust.

further authorized to honor any buy-sell agreements extant as to any property or interest held in

Physical signed/notarized originals are authoritative. Digital copies are backups.
· FILLABLE TEMPLATE · Replace all placeholder fields before notarization.

PHONE:
ADDRESS:
NAME:
Trust Protector:

PHONE:
ADDRESS:
NAME:
Co-Trustee:

PHONE:
ADDRESS:
NAME:
Successor Trustee:

ADMINISTRATIVE CONTACT INFORMATION